

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                                          |                                     |                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------|----------------------------------------------------------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Miriam Lynch                                                   | Team:<br>Squad #09                                       | CCRB Case #:<br>201709463           | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 11/12/2017 12:00 AM, Sunday,<br>11/19/2017 12:00 AM | Location of Incident:<br>Fulton Street and Church Street | 18 Mo. SOL<br>5/12/2019             | Precinct:<br>01                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Sun, 11/12/2017 2:08 PM                                | CV Reported At:<br>CCRB                                  | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sun, 11/12/2017 2:08 PM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Kawai Poon      | 13653  | 955337 | TB DT02 |
| 2. SGT Thomas Crean    | 01327  | 920165 | TB DT02 |
| 3. POM Majdey Ahmad    | 09156  | 957318 | TB DT02 |
| 4. POF Jere Upsher     | 06226  | 947083 | TB DT02 |
| 5. POM Robert Malvagna | 15337  | 956873 | TB DT02 |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. SGT Juan Hernandez  | 03610     | 949100 | TB DT02  |
| 2. POM Brian Bohr      | 25785     | 931552 | TB DT02  |
| 3. POM Ricardo Caceres | 21653     | 925008 | TB DT02  |

| Officer(s)              | Allegation                                                                                                                                                              | Investigator Recommendation |
|-------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Kawai Poon      | Abuse: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Kawai Poon stopped § 87(2)(b)                                        | A . Exonerated              |
| B . POM Kawai Poon      | Abuse: On November 12, 2017, at the Eighth Avenue: World Trade Center station, Kawai Poon stopped § 87(2)(b)                                                            | B . Exonerated              |
| C . POM Majdey Ahmad    | Abuse: On November 12, 2017, at the Eighth Avenue: World Trade Center station in Manhattan, Police Officer Majdey Ahmad stopped § 87(2)(b)                              | C . Exonerated              |
| D . POM Majdey Ahmad    | Abuse: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Police Officer Majdey Ahmad stopped § 87(2)(b)                       | D . Exonerated              |
| E . POM Majdey Ahmad    | Discourtesy: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Police Officer Majdey Ahmad spoke discourteously to § 87(2)(b) | E . Unsubstantiated         |
| F . POM Robert Malvagna | Abuse: On November 12, 2017, at the Transit District 2 Stationhouse in Manhattan, Police Officer Robert Malvagna refused to provide his name to § 87(2)(b)              | F . Unfounded               |
| G . SGT Thomas Crean    | Abuse: On November 12, 2017, at the Transit District 2 Stationhouse in Manhattan, Sergeant Thomas Crean threatened to have § 87(2)(b) removed to the hospital.          | G . Unsubstantiated         |
| H . POF Jere Upsher     | Discourtesy: On November 19, 2017, at the Eighth Avenue: Penn Station subway station in Manhattan, Police Officer Jere Upsher spoke discourteously to § 87(2)(b)        | H . Unsubstantiated         |

### Case Summary

Both § 87(2)(b) and § 87(2)(b) filed this complaint via the on-line system on November 12, 2017. At approximately 12:00 a.m. on November 12, 2017, § 87(2)(b) and § 87(2)(b) were on a train at the World Trade Center terminus on the Eighth Avenue Line. They were both stopped by PO Kawaii Poon and PO Majdey Ahmad of Transit District 2 (**Allegations A, B, C, and D: Abuse of Authority, exonerated**). PO Ahmad allegedly told § 87(2)(b) to “shut the fuck up” (**Allegation E: Discourtesy, unsubstantiated**). Both civilians were taken to the Transit District 2 stationhouse. In the holding cell, PO Robert Malvagna of Transit District 2 refused to provide his name to § 87(2)(b) (**Allegation F: Abuse of Authority, unsubstantiated**). Sgt. Thomas Crean of Transit District 2 allegedly told § 87(2)(b) that he was going to take her to Bellevue in a straitjacket (**Allegation F: Abuse of Authority, unsubstantiated**).

On November 19, 2017, at approximately 12:23 a.m. § 87(2)(b) was at 34<sup>th</sup> Street-Penn Station, waiting for a local Eighth Avenue Line train. She saw PO Ahmad and PO Jere Upsher of Transit District 2. PO Upsher allegedly referred to § 87(2)(b) as part of, “The crazy couple? The guy and the girl? The one with all the shit?” (**Allegation G: Discourtesy, unsubstantiated**).

On November 12, 2018 § 87(2)(b) was arrested for § 87(2)(b), and § 87(2)(b) was issued a Transit Adjudication Bureau summons for § 87(2)(b).

Video footage was requested from the MTA for both angles and both dates. The video angles provided to the CCRB for the World Trade Center or for Penn Station did not capture the respective part of the station where each incident occurred. The entire video files are in IAs #83 and #84 (Board Reviews 16 and 17).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Kawai Poon stopped § 87(2)(b)**

**Allegation (B) Abuse of Authority: On November 12, 2017, at the Eighth Avenue: World Trade Center station, Kawai Poon stopped § 87(2)(b)**

**Allegation (C) Abuse of Authority: On November 12, 2017, at the Eighth Avenue: World Trade Center station in Manhattan, Police Officer Majdey Ahmad stopped § 87(2)(b)**

**Allegation (D) Abuse of Authority: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Police Officer Majdey Ahmad stopped § 87(2)(b)**

It is undisputed that § 87(2)(b) and § 87(2)(b) each had at least one leg stretched on the bench of E train car #9110 when they were first approached by PO Poon and PO Ahmad. It is undisputed that § 87(2)(b) and § 87(2)(b) were stopped by PO Poon and PO Ahmad.

§ 87(2)(b) and § 87(2)(b) each stated that they had one leg extended along the seats of the subway car (Board Reviews 1 and 2). PO Poon and PO Ahmad each stated that they had both legs on the seats (Board Reviews 3 and 4).

Video footage was provided by the MTA, but it did not include any angles of the train platform (Board Review 5).

The Transit Adjudication Bureau rules of conduct prohibit subway passengers from placing any feet or lying on the seats of a car (Board Review 6).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, and D** be closed as **exonerated**.

**Allegation (E) Discourtesy: On November 12, 2017, at the Eighth Avenue: World Trade Center subway station in Manhattan, Police Officer Majdey Ahmad spoke discourteously to**

§ 87(2)(b)

§ 87(2)(g)

During her phone statement and her CCRB interview, § 87(2)(b) stated that PO Ahmad told her to, “Shut the fuck up,” as she was telling the officers to stop handcuffing § 87(2)(b). She did not volunteer any additional profanity (Board Reviews 2 and 7).

When asked about the statement in his CCRB interview, § 87(2)(b) did not remember whether any officer made this statement to § 87(2)(b). He believed that someone said, “Oh shit,” while § 87(2)(b) was dealing with officers behind him, but could not attribute this statement to any individual (Board Review 1).

PO Poon and PO Ahmad denied that PO Ahmad stated, “Shut the fuck up,” to § 87(2)(b). PO Ahmad stated that § 87(2)(b) was yelling, and he ordered her to stop doing so, but he denied that he told her to “shut up” or “shut the fuck up” (Board Reviews 3 and 4).

No individuals present, either the officers or the civilians, could provide any information by which potential witnesses could be reached, and MTA footage captured neither the platform of the train where this incident occurred, nor any audio of the incident. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **unsubstantiated**.

**Allegation (F) Abuse of Authority: On November 12, 2017, at the Transit District 2 Stationhouse in Manhattan, Police Officer Robert Malvagna refused to provide his name to**

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that while he was in the holding cell, PO Malvagna asked PO Poon if PO Poon wanted him to retrieve a sergeant, because § 87(2)(b) was requesting a sergeant. § 87(2)(b) stated that he then asked PO Malvagna for his name, twice (Board Review 1).

No one else present in the holding cell interviewed by the CCRB, including § 87(2)(b) PO Poon, Sgt. Crean, or PO Malvagna, was able to remember § 87(2)(b) asking for any officer's name. § 87(2)(b) at that point, stated that both she and § 87(2)(b) were registering discontent with PO Poon's arrest processing at the time, and that they were in cells that were directly next to each other. PO Malvagna stated that he did not remember either § 87(2)(b) or § 87(2)(b) speaking directly to him, though he did see them in the holding cell (Board Reviews 2, 3, 7 and 8).

At the time that § 87(2)(b) alleged that PO Malvagna refused to provide his name, both § 87(2)(b) and § 87(2)(b) were sitting in cells, side by side, in close proximity. They were not engaged in any sort of physical altercation.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unfounded**.

**Allegation (G) Abuse of Authority: On November 12, 2017, at the Transit District 2 Stationhouse in Manhattan, Sergeant Thomas Crean threatened to have § 87(2)(b) removed to the hospital.**

It is undisputed that § 87(2)(b) took issue with the way that PO Poon was dividing her and § 87(2)(b)'s property, and remained at the Transit District 2 stationhouse after PO Poon issued her a summons. § 87(2)(g)

Both § 87(2)(b) and § 87(2)(b) alleged that Sgt. Crean came into the cell area and told § 87(2)(b) that she would be taken to a psychiatric hospital (Board Reviews 2 and 3).

None of the other officers corroborated this statement (Board Reviews 2, 7, and 8). Sgt. Crean remembered being at the stationhouse on that evening to assist PO Malvagna with paperwork, but he did not remember interacting with any of PO Poon's detainees, or threatening to remove any civilian to the hospital. Sgt. Crean stated that between midnight and 4:00 a.m., he was intermittently in and out of the stationhouse and on patrol in the subway. This recollection was consistent with his memo book entries, § 87(2)(g), which places him at West Fourth Street at 12:40 a.m. and back on train patrol at 2:40 a.m. (Board Review 8).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

**Allegation (H) Discourtesy: On November 19, 2017, at the Eighth Avenue: Penn Station subway station in Manhattan, Police Officer Jere Upsher spoke discourteously to** § 87(2)(b)

§ 87(2)(g)  
§ 87(2)(b) alleged that she saw PO Ahmad and PO Upsher at the 34<sup>th</sup> Street, Eighth Avenue station approximately one week after § 87(2)(b)'s arrest. She stated that PO Ahmad motioned to her, and that PO Upsher asked if she was part of, "The crazy couple? The guy and the girl? The one with all the shit?" (Board Review 2).

PO Upsher remembered PO Poon and PO Ahmad discussing an arrest that they made for individuals being outstretched on a train bench during a discussion of precinct conditions. She stated that § 87(2)(b) was only one of a number of people, and one out of a number of couples arrested for the same crime in downtown Manhattan subway stations. She did not, however, remember encountering § 87(2)(b) specifically, or remember making the statement that § 87(2)(b) alleged (Board Review 9).

PO Ahmad remembered encountering § 87(2)(b) while he was on an Eighth Avenue Line patrol with PO Upsher. He did not remember ever discussing § 87(2)(b) or § 87(2)(b) with PO Upsher, and he did not remember doing so in the presence of § 87(2)(b) when he encountered her a second time. He did not hear PO Upsher say the phrase that § 87(2)(b) alleged, and he denied that any officer used the word "shit" on the platform (Board Review 4).

Footage was provided by the MTA, but it did not include the section of the station that § 87(2)(b) picture indicated that she was in, and had it included that section, it would not have included sound. § 87(2)(g) No witnesses were identifiable by the CCRB, who could corroborate this statement.

§ 87(2)(g)  
§ 87(2)(b). It is therefore recommended that **Allegation H** be closed as **unsubstantiated**.

**Civilian and Officer CCRB Histories**

- § 87(2)(b) has been a party to four prior complaints with FADO allegations, and is also involved in one subsequent CCRB complaint (Board Review 10). He has been named as a victim in 16 prior allegations and three subsequent allegations.

- § 87(2)(b)  
§ 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)  
■ § 87(2)(b)

- \_\_\_\_\_
- \_\_\_\_\_

## Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

\_\_\_\_\_  
Signature                      Print Title & Name                      Date

\_\_\_\_\_  
Signature                      Print Title & Name                      Date

Reviewer:

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Title & Name

\_\_\_\_\_  
Date